

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Thursday, September 24, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, September 24, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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25CV-00872	Virginia Allen vs Richard Vargas, Junior
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Further Proceedings

Appearance required.

25CV-01889	Kelly Bretzinger, et al. vs Niren Angle, Doctor of Medicine, et al.
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Demurrer

Defendant's demurrer is OVERRULED.

Plaintiff has alleged that they were truly ignorant of Dr. Syed's alleged liability at the time of filing the complaint and to prove otherwise requires evidence not before the court at this time.

Defendant is to file a responsive pleading within ten (10) days of this Court's order.

25CV-04459

Martin Ruiz vs Dhaliwal Bros Carrier, Inc., et al.

Motion to Set Aside Default

Defendant's motion to set aside the entry of default is GRANTED. Defendant has met all the statutory requirements to be granted relief under Code of Civil Procedure section 473, subdivision (b).

The Court will sign the order lodged on August 28, 2026. Defendants are ordered to file their responsive pleading within ten (10) days of this Court's order.

26CV-03089

Marvin Barnett vs Pea Soup Andersen's-Santa Nella, Inc., et al.

Motion to Set Aside Entry of Default

Defendant's motion to set aside the entry of default is GRANTED. Defendant has met all the statutory requirements to be granted relief under Code of Civil Procedure section 473, subdivision (b).

The Court will sign the order lodged on August 20, 2026. Defendants must file their responsive pleading within ten (10) days of this Court's order.

26CV-03684

Nitricity, Inc. vs California Department of Food and Agriculture, et al.

Status Conference

Appearance required. The Court has reviewed, and appreciates, the joint case management conference statement filed September 17, 2026, laying out the status of this case from the perspective of each side. Based on that statement, the Court anticipates continuing the status conference on a short schedule – approximately 30 to 45 days – to ensure the completion of the administrative record is prioritized. A briefing and hearing schedule would be set upon completion of the record. A final decision will be made at the status hearing after consideration of any additional input from the parties.

26CV-04296

Guadalupe Barriga vs Fernando Guillen

Order to Show Cause Re: Restraining Order

Appearance required. Although proof of service of the original notice of hearing on Respondent has been filed, the court has not received proof of service for the continuance of the original hearing to this date.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Thursday, September 24, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
24CV-04228	LVNV Funding LLC vs. D Wisdom Hambrecht
	Review of Case Status – Status of Default Judgment
	Appearance required. Appear to address status of submission of request for default judgment.
24CV-06212	Loya Casualty Insurance Company vs. Evelio Duenas
	Order to Show Cause Why Monetary Sanctions Should Not Be Imposed on All Parties for Failure to Attend Case Management Conference on July 10, 2026
	Appearance required.
	Case Management Conference
	Appearance required.

25CV-05966

Wells Fargo Bank, N.A. vs. Kollin Craig

Motion for Order Deeming Admitted Requests for Admission

The unopposed motion by plaintiff Wells Fargo Bank, N.A., for an order deeming admitted the genuineness of any documents and truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Kollin Craig is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that Defendant has not served a response to Plaintiff's requests for admission prior to the hearing.

The Court will sign the proposed order submitted with the moving papers. Plaintiff is directed to provide notice of the order to Defendant.

The Court confirms the case management conference scheduled for December 11, 2026, at 8:30 a.m. in Courtroom 9.

26CV-02397

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Review of Case Status – Status of Bankruptcy

The Court requests an update on the status of the bankruptcy stay. If neither party appears to provide an update, the Court intends on its own motion to set aside the court order from August 27, 2026, as a void order unknowingly made in violation of the automatic stay under federal bankruptcy law and no further status hearing will be set.

26CV-04050

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Ongoing

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Ex Parte Application Calendar
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Thursday, September 24, 2026
1:15 p.m.

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Case No.	Title / Description
26CV-04051	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
	Ex Parte Application for Order Setting Aside Default, Vacating Default Judgment and Staying Execution of Judgment
	Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Restraining Orders
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Thursday, September 24, 2026
11:00 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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25CV-04344	Samantha Von Allman vs Joseph Fregoso
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Order to Show Cause Re: Restraining Order Renew

Appearance required.

26CV-01776	Colton Runnells vs. Andres Morneo
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Order to Show Cause Re: Restraining Order 6 month review

Appearance required.

26CV-04239	Jonathan Vargas vs. Larry Briggs
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Order to Show Cause Re: Restraining Order

Appearance required.

26CV-04240

Denisa Parra vs. Uriel Peralta

Order to Show Cause Re: Restraining Order

Appearance required.
